

CHAPTER 42.

An Act to extend the Jurisdiction of the County Courts.

[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the County Courts Act, 1903. Short title.
2. This Act shall come into operation on the first day of January one thousand nine hundred and five. Commence-
ment of Act.
3. The portions of the fifty-sixth, fifty-seventh, fifty-eighth, fifty-ninth, sixtieth, eighty-first, ninety-sixth, one hundred and sixteenth, one hundred and thirty-eighth and one hundred and thirty-ninth sections of the County Courts Act, 1888, containing the words "fifty pounds" are hereby repealed, and in lieu thereof there shall be substituted the words "one hundred pounds." Extension of
jurisdiction
of court.

51 & 52 Vict.
c. 43.
4. Section one hundred and two of the County Courts Act, 1888, shall be read as if the word "eight" were substituted for the word "five." Juries.
5. It shall be lawful for His Majesty by Order in Council to provide that the actions in which the plaintiff claims a sum exceeding fifty pounds by virtue of this Act shall be tried in any court, where His Majesty is satisfied that due provision has been made for carrying on the business of the court without interference with the ordinary jurisdiction of the court, and of which the judge of the court in which such actions may be commenced is the judge, and that the court to which such actions may be transferred for trial shall have the same jurisdiction in such actions as it would have had in case they had been commenced therein, and that the judgment of the court in which such actions are tried shall have the same effect as if the judgment therein had been the judgment of the court in which they were commenced. Transference
of actions in
which the
plaintiff claims
more than fifty
pounds by
virtue of this
Act.
- 6.—(1) Where two or more districts are consolidated, notwithstanding anything in section forty-five of the County Courts Act, 1888, contained, the Lord Chancellor, with the consent of the Treasury, may make such provision for the duties of the registrar and otherwise as he may think fit. Registrars.
(2) Where an order has been made as to a registrar under section forty-five of the County Courts Act, 1888, he shall account for and pay over to the Exchequer all fees whatsoever received by him after the date of such order, in such manner as the Lord Chancellor, with the concurrence of the Treasury, may direct.
7. The power to make rules of court in accordance with the one hundred and sixty-fourth section of the County Courts Act, 1888, shall extend to making rules for carrying this Act into effect. Rules.
8. This Act and the County Courts Act, 1888, shall be construed as one Act. Construction.